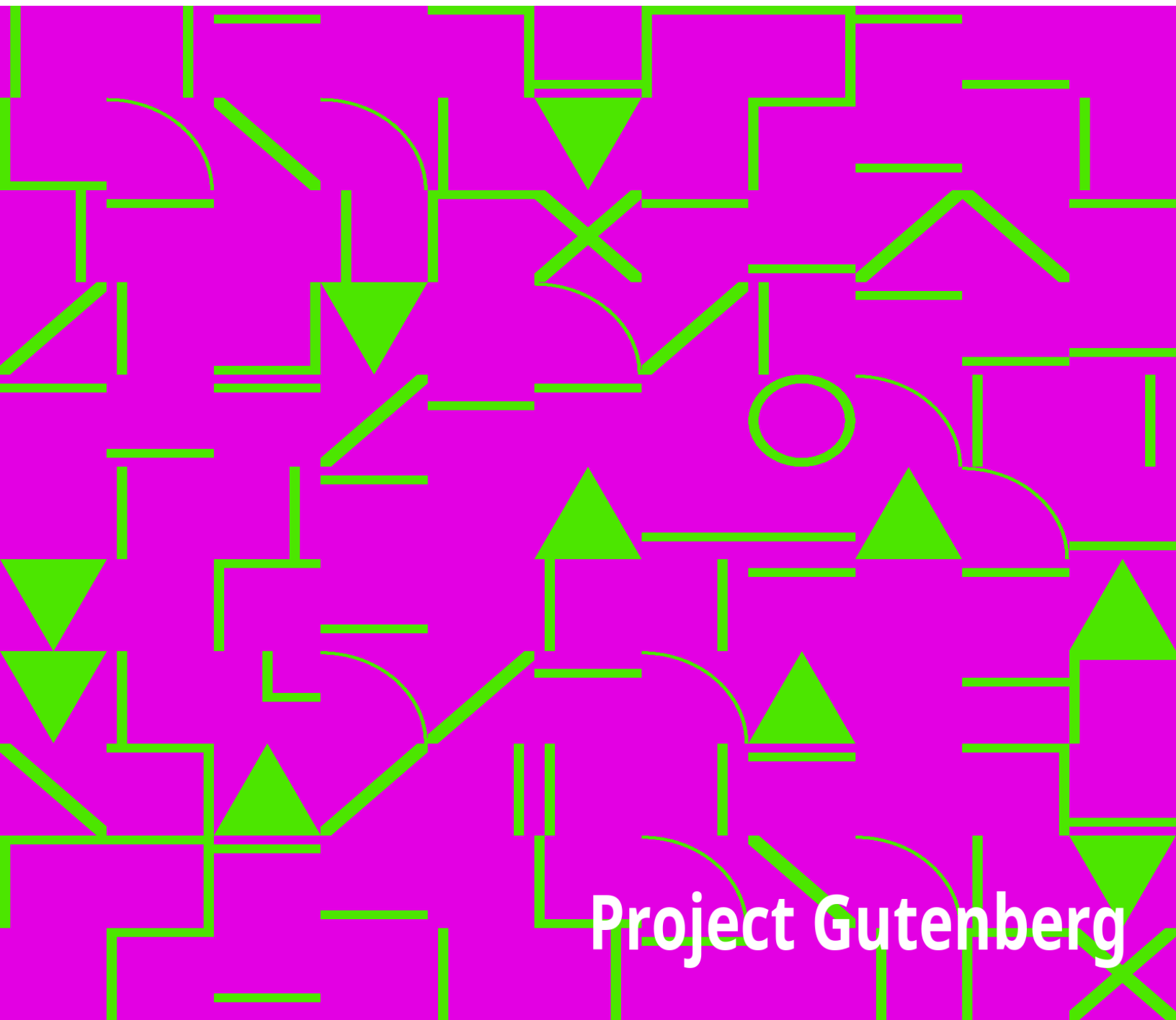


The Proper Limits of the Government's Interference with the Affairs of the East-India Company

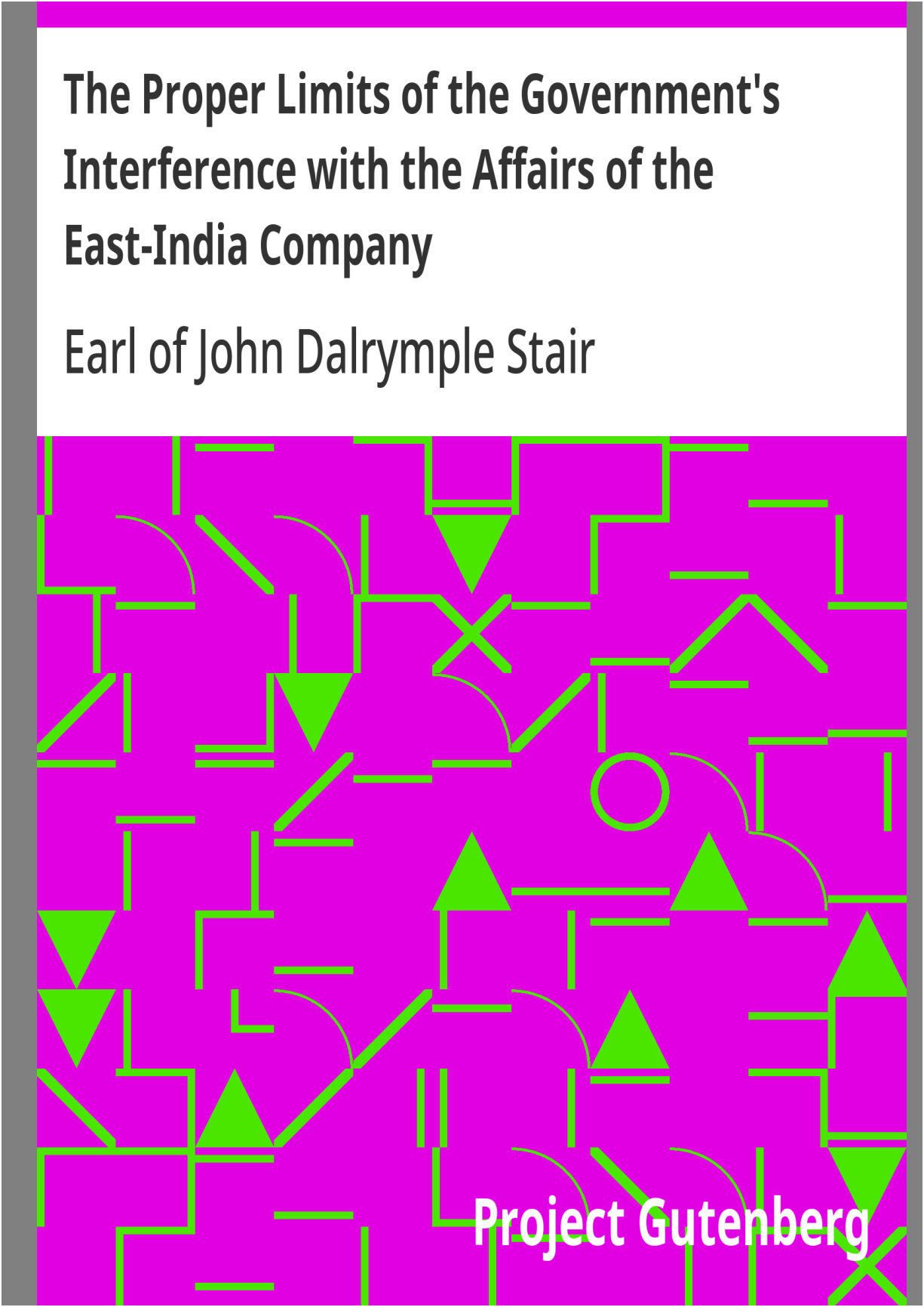
Earl of John Dalrymple Stair



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THE PROPER
LIMITS
OF THE
GOVERNMENT'S Interference
with the Affairs of the EAST-
INDIA COMPANY,
ATTEMPTED TO BE ASSIGNED.

WITH SOME FEW
REFLECTIONS

Extorted by, and on, the distracted State of the Times.

By JOHN, EARL of STAIR.

——And beshrew my soul,
But I do love the favour and the form
Of this most fair occasion; by the which

We will untread the steps of damned flight,
And, like a 'bated and retiring flood,
Leaving our rankness and irregular course,
Stoop low within these bounds we have o'erlook'd,
And calmly run on in obedience.

L O N D O N :

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THE PROPER
LIMITS
OF THE
GOVERNMENT'S Interference with the Affairs
of the EAST-INDIA COMPANY, &c.

Each day's experience proves the fallibility of conjecture, even when established on apparently the surest foundations.

Having stated, indeed materially and substantially proved, that the annual peace expenditure of the state, if decently, not profusely, nor even amply provided for, could not be performed for less than sixteen millions five hundred thousand pounds; and having asserted, with truth, that the annual receipts have scarcely, on the most productive years of the public revenue, exceeded twelve millions; and the necessary corollary, arising out of these propositions, being an annual surplus or sinking fund to the amount (if at all proportional) of at least fifteen hundred thousand pounds, as a provision for great civil emergencies or future wars, without which no system of finance can be either respectable or assuredly permanent; and it following of necessary consequence from these premises, that the proper peace revenue, from something more than twelve millions, which is its present amount, ought to be raised to eighteen millions yearly:—these matters, I say, being as I have represented them, I firmly believed the public affairs of this country were tolerably embarrassed, and weakly imagined Ministers might find full employment in extricating them, without courting, and eagerly, through right and through wrong, aspiring and grasping at the management of affairs fully in as great a state of confusion as our own. But I find I greatly under-rated the cravings of the appetite of our late rulers, who seem to have had stomach for all difficulties, however remote from the natural and needful course of their public functions, and however averse the parties interested were to trust their concerns to their direction. In consequence of this canine hunger and thirst after regulation, a bill was brought in and passed by a very great majority of the House of Commons, to virtually consolidate the embarrassed concerns of the East-India Company, in direct opposition to the desires of the proprietors, with the no less embarrassed affairs of this unhappy country. This bill has been thrown out by a wise and virtuous majority in the House of Peers; but as the majority there was but small, and threats are thrown out (in order to make it still smaller) against Peers, for exercising their indispensable distinctive prerogative duty of giving honest counsel to

their King; and as the same majority, leagued to promote their own advancement and the ruin of the state, still exists and exults in the House of Commons; I doubt not but the same strange destructive measure will be resumed. It therefore becomes the business of every well-wisher to the prosperity of Britain, to oppose and to refute the specious nothings offered to blind and to conceal from the public the designs of a dark and fatal tendency attached to it; and I think it my duty, moreover, and a justice due to the creditors of the public in particular, at least, to such as shall adhere to me, to protest and enter my dissent in their name against any increase of the public debt, by the addition and incorporation of the debts of the East-India Company with those of the public, in any manner, whether openly, or by implication and management.

I now proceed to consider the reasons offered in vindication of the bill by which so daring a violation of every thing the laws hold most sacred was attempted.

The first plea that was insisted on, was, that the Company was bankrupt; but this argument defeats itself. If they are bankrupt, the law has provided a due course of proceeding: Ministers, or the Deputies of Ministers, are not the proper assignees to the bankrupt's estate: the trade is, moreover, by the civil death of the Company, open to every adventurer. But this pretext of bankruptcy is but a flimsy disguise easily seen through: Ministers are not so eager to obtain the administration of the affairs of a bankrupt: the virtuous majority in the House of Commons, increased without any visible cause, or known success, or advantage of any kind, real or pretended, obtained to the public from the cares of the late administration;—increased, I say, from a small doubtful few in the disapprobation of the peace, to a steady, triumphant majority of one hundred and fourteen in the business of the East-India Company; gives no note or appearance of a present bankruptcy in the Company's affairs; but to those that do not know the incorruptible integrity and disinterestedness of the British legislative bodies, gives an ugly hint and surmise of what is likely to happen in future. Of bankruptcy I need say no more; it confutes itself.

The next plea is humanity, and a wish to restore in India a better and a juster system of government, less rapacious, and less oppressive to the natives. This is certainly a fair and generous object; but how do the means correspond with the end, or, what solid proof have we that excesses do exist, or, at least, have been carried to the singular and unnatural extent each parliamentary declaimer is pleased to assign to them? Having forced the Company to bear a share in all the foolish wars Britain involved herself in, money must be found. The smooth swindling methods of funding, without giving the creditors adequate securities for either principal or interest, are not practicable in China. Self-preservation enforced the necessity of violence, more obnoxious in the beginning, but, perhaps, in the end, less ruinous than the soft, sly deceits of Europe. Those violent measures, palliated by the necessity of self-preservation, excepted, what remains but an *ex parte* charge, in Reports to the House of Commons, curious and

voluminous indeed, but without confrontation of the accused, or any other necessary preliminary to condemnation, sought by private equity, or required by public justice? We have only an inform mass of matter, where disappointment, vanity, and malevolence, are too often prompted by management and design to accuse, and every accusation is held forth as compleat evidence of guilt. Indeed, some accounts scattered through the vast abyss of eastern manners and customs, make by much the most useful and entertaining part of this exceedingly tedious farrago; though in this part it falls far short in beauty of style and composition, and probably does not much exceed in veracity, the Arabian Night's Entertainments.—But grant that wrongs and injustice predominate, who are to restore the golden age in India? We know the late Ministry, their habitudes, and connections; from Brooks's, then, it is fair to suppose the daring Argonauts were to have sailed in search of the Golden Fleece: from Almack's our bold Pizarros must have taken their course to civilize our new-acquired ministerial Peru. Determined minds used to set fame and fortune on the dies uncertain cast: soft souls, overflowing with Christian forbearance, and the milk of human kindness suckt in at the gaming-table, from such apostles, alas! I rather should suspect,

With Atè by their side, come hot from hell,
Shall in these confines, with a monarch's voice,
Cry havoc! and let slip the dogs of war.

Yet I readily agree that it may be proper to send out a well-chosen commission of visitation and inspection, with adequate and efficient powers from Parliament; though I am greatly deceived, if they do not find that matters are much exaggerated. The Reports to the House of Commons from Committees are generally very false mediums to view the object they treat of through: they are moved for common by persons interested in the event, sedulously attended by them, and the materials are too often modelled and made up according to their views, and to serve their purposes. I have therefore ever greatly regretted the abolition of the board of trade, the fair, candid judges in these matters, or who might be made so. The argument from the abuse to the use, is not a fair consequence; and I sincerely and earnestly recommend the re-establishment of that board. From the revenues of the Duchy Court of Lancaster now vacant, and a small gleaning from the enormous overgrown sine-cures in the Exchequer, this may be done without expence, and with great emolument to the Crown and to the public.

It is, besides, the height of absurdity, to think the Indians are unhappy because they do not live under the same constitution as the inhabitants of this island. The government in that country, for a very long period of time, has been so unsettled, that no form of it that has any stability, or affords any degree of protection to the subjects that live under it, can be pronounced to be a bad one: in every other case, the weaker are almost sure to be exterminated by those that are stronger.

I should esteem it, in such uncertainty of doing any good of any kind, extremely improper for the public to make a common cause with the East-India Company, further than I have already stated, and likewise by assisting them with some necessary pecuniary aid in their present distress. The consequences of the public taking upon themselves the direction of the Company's trade, or even of their territorial acquisitions, I apprehend would be most ruinous. No nation has ever attempted any thing of this kind without being greatly losers by it, even where government was carried on principles infinitely more favourable to such an enterprise than the free constitution of this country admits of.

France has often been compelled, in order to preserve the trade to India and their Companies from sinking, to interfere, and I believe is still concerned in the national trade to India; but this is on mere compulsion and necessity, and is, and has ever been, a very losing business to the Crown of France. If this is so, then how much worse must it be here, where the advantages taken of the public in every public business are enormous: and indeed the uncertainty of the time of payment, and the difficulty of passing the account, do warrant a demand of a great latitude at any time; but at present, when the ordnance debentures are at 30 per cent. discount, and the navy bills, which carry an interest of 4 per cent. are at 17 per cent. discount, it is almost impossible to say on what terms a contract with Government would be advantageous. In more settled times, I believe, 25 per cent. on estimate, and near 50 per cent. on arbitrary statements, did not vary much from the difference, to the disadvantage of the public, betwixt public and private contracts for the same performances.

In this view, and it is a just one, nothing but absolute necessity, and the sure consequence of losing the trade altogether, could justify the interference of Government beyond the limits already assigned, if even these could justify it. But this necessity is happily entirely out of the question at present: the Company anxiously desire to go on with their trade: a forbearance of duties due, is all they ask, to the extent of, I think, a million. If it was three times as much, Government would be mad, if they hesitated in the alternative betwixt indulging them in their demand, and taking their concerns into their own hands. The affairs of the Company have been embarrassed before; they have borrowed large sums from Government, which they have honestly repaid. Their surplus in peaceable times is very large; and if tranquility is any way durable in India, and the administration of the Company's affairs is continued in the hands of that powerful genius of resource, Mr. Hastings, I make no doubt they will extricate themselves with honour, and do justice to every creditor they have. I am at least sure, that this is giving the only chance of making them beneficial to this country; and it is what the Company is highly entitled to.

I have often wondered upon what principle of policy one of our two great commercial companies should be the *enfant galé*, the spoilt child of every administration whilst

the other was treated like the step-son of the state, with every mark of jealousy and unkindness. The merits of the East-India Company towards the nation are great and notorious. Whilst every other country has been taxing their subjects, in order to support their East-India trade, the English East-India Company has been the support, to a good extent directly, and in a very great and eminent degree indirectly, of the British finances; and in the late war the Company maintained alone, in their dominions and enterprises, the superiority which usually attended the British arms in every quarter of the globe; and at last, in the acquisitions made by the Company's arms, the material indispensable sacrifices to procure a necessary peace were found. Indeed, their expences in the reduction of Pondicherry, and the value of it, and of the other restitutions made to the French by the definitive treaty of peace, seem to me a very onerous and most just debt on Britain, and why they are not stated as such by the Company, I cannot see any shadow of a reason.

It was under the direction of their own proprietary, uncontrouled by parliament, that the Company rose to an unexampled height of wealth and prosperity: since the interference of parliament, their affairs have declined. Possibly now the patronage is so valuable and extensive, their constitution may be defective, by the too immediate dependence of the directors on the proprietors, who, by their brigues and cabals, overawe, and often make abortive the best intentions of the directors. But matters of charter and property are of so difficult and delicate a nature, that it is hard to say, whether any attempt to remedy this might not do more harm than good.

It is related, that Monsieur Colbert, Lewis the Fourteenth's very able minister of commerce and finance, and to whose memory France stands much indebted, called an assembly of the most eminent men in the French king's dominions in the commercial line, to whom he proposed the consideration, if any, and what advantages might accrue to commerce by the interference of Government. The unanimous answer of the assembly was, *Laisser le faire*, let it alone.

A new doctrine has been likewise attempted to be established in favour of the late India Bill, viz. That measures are not to be so fully and fairly canvassed as they ought, but are to rely and be supported by the responsibility of the proposer of them. The presumption and absurdity of such a proposition is too great to require an answer. The responsibility of the proposer often would not procure him ten pounds; and as to any thing sanguinary, God knows! the hazard is very, very trifling. Indeed, the persons who avowedly, first by denial of justice to America, plunged us into a war, and afterwards, by obstinately persevering in it, when experience had evinced the success was impracticable, and who by so doing have irretrievably (I fear) undone their country, enjoy in pomp and serenity, even to ostentation, the honours and lucrative employments heaped upon them. If justice is demanded for glory, for wealth, for dominion lost, they pay you with an ideal jest: if you want more, a ready vote of

acquittal is at hand from a packt majority, united on the most sordid principles, to promote each other's advantage, in open and abandoned violation, on one part of the coalition, of the faith a thousand times pledged to bring delinquents to justice, who now are not only protected, but represented, with a falsehood and inconsistency that degrades human nature, as great, wise, and virtuous ministers, by those very men who not very many months stigmatized them as the base undoers of their country.

His Majesty has, however, been pleased to nominate a new ministry: they are young and untried: I wish them well; and my poor support shall be theirs, if they deserve it. I hope their real essential bond of union is at least less dangerous than that of their predecessors, viz. through violation of charters to obtain the plunder of India for themselves and adherents.

I should have thought a dissolution of Parliament necessary to have preceded, in order to procure any stability in the settlement of a new ministry. The reason offered against this measure was quite trifling, viz. the delay of public business; for the Parliament would have been dissolved, and a new one elected, in little more than the period of usual recess at this time of the year; which recess was not intended to have been shortened, if the late overthrow of the ministry had not taken place. Should the indecent interruption of every thing that does not promote their own continuance, still prevail in a majority of the House of Commons, the delay of public business will be well compensated by the facilities a new election will probably afford, and by the rapid progress of measures beneficial and necessary to the public that will take place hereafter, which, under the present jarring situation and equipoise of parties, cannot, in my poor opinion, ever be carried on with either certainty or dispatch.

But I still dread the continuance of the present distractions. The politics of St. James's have had ill luck for common, and, by some fatal ascendancy, have generally backwards trod the very paths they most anxiously sought to shun. The faction has emissaries spread far and wide to pluck allegiance from men's hearts. It will demand, on the part of the King, an active, unremitting attention to replace himself in that state of pre-eminence and influence the constitution allows, and even requires. Let this never be out of mind. When his Majesty hunts the stag, let him reflect that he is himself the hunted stag, the royal hart held at bay by a fierce, unrelenting faction, who deny, or mean to explain away, his dearest, clearest prerogatives. A prince so virtuous, who never was even suspected to mean any foul play to the state, ought to command in every honest service, and he will command no other, those servants whom he is now obliged to sue to, and often is refused. The onward path, ingenuous openness of fair sincerity and prudent œconomy in private life, lead to peace of mind, and to heaven's best gift, independence; they martial kings to greatness, to awe, and affectionate veneration. I know the delicate ground I tread; but I owe much to my sovereign, and, above all, TRUTH; and I will pay the debt, tho' the most ungrateful

office, yet the surest pledge of real love and respect that I can give. What have I to fear? I have lived too long; I never wished to survive the glory of my country; and I cannot form a wish so mean as to survive its liberties. Whig as I am, if liberty must expire, I hold its Cuthanaria to be in a mild despotism. But in all the bills of mortality, of human grandeur, never sure was so strange a catastrophe recorded, as a king taken prisoner, and a great and glorious constitution squirted to death, by the sportings of a set of prodigal, undone, gambling, friblish, impudent Eton boys.

Jan. 1. 1784.

FINIS.

Transcriber's Notes

The transcriber made these changes to the text to correct obvious errors:

1. p. 3 Stationers Hall --> Stationers' Hall
 2. p. 9 brankrupt --> bankrupt
 3. p. 12 securites --> securities
 4. p. 19 tranquiility --> tranquility
-

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